

The Airports Economic Regulatory Authority Of India (Salaries, Allowances And Other Conditions Of Service Of The Chairperson And Members) Rules, 2009

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The Airports Economic Regulatory Authority Of India (Salaries, Allowances And Other Conditions Of Service Of The Chairperson And Members) Rules, 2009

UNION OF INDIA

India

The Airports Economic Regulatory Authority Of India (Salaries, Allowances And Other Conditions Of Service Of The Chairperson And Members) Rules, 2009

Rule

THE-AIRPORTS-ECONOMIC-REGULATORY-AUTHORITY-OF-INDIA-SALARIES-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-THE-CHAIRPERSON-AND-MEMBERS-RULES-2009 of 2009

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The Airports Economic Regulatory Authority Of India (Salaries, Allowances And Other Conditions Of Service Of The Chairperson And Members) Rules, 2009

Published vide G.S.R. 321(E), dated 13.5.2009, published in the Gazette of India, Extraordinary, Part II, Section 3(i),

dated 13.5.2009.

255.

In exercise of the powers conferred by clause (a) of sub-section (2) of section 51 of the Airports Economic Regulatory Authority of India Act, 2008 (

27 of 2008

), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(1) These rules may be called The Airports Economic Regulatory Authority of India (Salaries, Allowances and Other Conditions of Service of the Chairperson and Members) Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,- -

(a)

"Act", means the Airports Economic Regulatory Authority of India Act, 2008;

(b)

All other words and expressions used herein and not defined but defined in the Act, shall have the same meanings respectively as assigned to them in the Act.

3.

Salaries and allowances .-(1) The Chairperson shall be entitled to a monthly salary of Rs. 80,000 (fixed).

(2)

[The Member shall be entitled to a monthly salary in the Pay Band 'HAG' in the scale of Rs. 67,000 (annual increment @ 3%) - 79,000.]

(3)

The Chairperson and a Member shall be entitled to draw dearness allowance and city compensatory allowance at the rates applicable to a Group 'A' officer of the Central Government drawing an equivalent pay:

Provided that in case of appointment of a person as the Chairperson or a Member who has retired from the service under Central Government or State Government and who is in receipt of, or has received or has become entitled to receive any retirement benefits by way of pension, gratuity, employers contribution to the Contributory Provident Fund or other forms of retirement benefits, the pay of such Chairperson or Member, shall be reduced by the gross amount of pension or retirement benefits, if any, except pension equivalent of gratuity, drawn or to be drawn by him:

Provided further that if a person who has retired from any service including service under Central Government or State Government, Public Sector Undertaking or Autonomous Body is appointed as the Chairperson or a Member, he shall be entitled to receive dearness allowance at the same rate as applicable to a Group 'A' officer of the Central Government drawing an equivalent pay, but he shall not be entitled to receive dearness relief on pension during the period he holds office as such Chairperson or a Member.

4.

Leave .-(1) The Chairperson and a Member shall be entitled to thirty days of earned leave for every year of service.

(2)

The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Service (Leave) Rules, 1972.

(3)

The Chairperson and a Member shall be entitled to encashment of fifty percent of earned leave to his credit at any time.

5.

General Provident Fund or Contributory Provident Fund, Pension and Gratuity .-(1) The Chairperson and Member shall be governed by Contributory Provident Fund Rules and no option to subscribe under General Provident Fund (GPF) Rules will be available.

(2)

No additional Pension and Gratuity shall be admissible for service rendered in the Regulatory Authority.

6.

Leave travel concession, travelling allowance and daily allowance .--The Chairperson and a Member shall be entitled to travelling allowance and daily allowance on tour as applicable to Government Servants drawing equivalent Grade pay

and they shall also be entitled to facility of temporary Government accommodation in Guest Houses or Inspection Bungalows under the control of the Central Government, on payment of normal rent at out-stations, of the class to which Government servants of equivalent pay are eligible.

7.

Medical treatment .-The Chairperson and a Member shall be entitled to Medical treatment and Hospital facilities as provided in the Central Government Health Scheme for retired Government servants and at places where the such Scheme is not in operation, the Chairperson and Members who are not Government servants shall be entitled to the facilities as provided in the Central Service (Medical Attendance) Rules, 1944.

8.

Official visits abroad .-(1) The Chairperson and a Member shall be entitled to undertake official visits abroad with the prior approval of the Minister-in-charge of the Ministry of Civil Aviation and after political clearance from the Ministry of External Affairs.

(2)

The daily allowance and the provision for hotel accommodation during the period of tour abroad shall be regulated in accordance with the Government instructions as applicable from time to time to officers of equivalent pay in the Government of India and Indian Missions abroad shall take care of arrangements and extend facilities as applicable to Group "A" officers of the Central Government drawing an equivalent pay.

9.

Transport allowance .-The Chairperson and a Member shall be entitled to fixed reimbursement of transport allowance between Rs. 3,000 and Rs. 5,000 per month as laid down by the Department of Personnel and Training from time to time for the use and maintenance of his personal car for transportation between residence and office and it shall include the salary of a driver who shall not be a Government servant.

10.

Accommodation .-The Chairperson and a Member shall be given the option of claiming House Rent Allowance at the rate of thirty percent of the basic pay drawn if they stay at Delhi but no house shall be hired by the Authority or allotted by the Government and in case of a satellite town surrounding the National Capital Territory of Delhi, the Chairperson and a Member shall be entitled to rented unfurnished accommodation with built-up area measuring around three hundred and fifty square meters for Chairperson and three hundred square meters for a Member with suitable open land area.

11.

Oath of office and secrecy .-The Chairperson and a Member shall, before entering upon the office, make and subscribe before the Minister an oath of office and secrecy, set out in Forms I and II annexed to these rules.

12.

Telephone facility, official meetings and entertainment expense .-The Chairperson and a Member shall be entitled to telephone facilities, official meetings and entertainment expenses as admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

13.

Residuary matters .-Matters relating to the terms and conditions of service of the Chairperson or a Member with respect to which no express provision has been made in these rules, shall be such as are admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

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